

HOUSE No. 4891

Substituted by the House, on motion of Mr. Walsh of Peabody, for a Bill relative to the charter of the city known as the town of Randolph (House, No. 4400). January 5, 2026. [Local Approval Received].

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act amending the charter of the city known as the town of Randolph regarding compensation of town council and school committee members and meetings of multiple-member bodies.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 2-4 of article 2 of the charter of the city known as the town of
2 Randolph, which is on file in the office of the archivist of the commonwealth, as provided in
3 section 12 of chapter 43B of the General Laws, is hereby amended by striking out subsection (a)
4 and inserting in place thereof the following subsection:-

5 (a) Salary - The town council may receive compensation as provided by ordinance.

6 SECTION 2. Subsection (c) of section 2-6 of said article 2 of said charter is hereby
7 amended by striking out clause (ii) and inserting in place thereof the following clause:-

8 ii. Special meetings of the town council shall be held at the call of the council president
9 upon 48 hours' notice to all members. Special meetings of the town council may also be held
10 upon the call of any 3 or more members, upon 48 hours' notice delivered in hand or to the place
11 of residence of each member. Notice of a special meeting shall contain a listing of the items to be

acted upon. A copy of the notice to members shall, forthwith, be posted upon the town bulletin board. In the case of emergency, notice of a special meeting shall be given as far in advance of the meeting as possible under the circumstances.

SECTION 3. Subsection (b) of section 2-9 of said article 2 of said charter is hereby amended by striking out the second paragraph and inserting in place thereof the following paragraph:-

On the first occasion that the question of adopting any measure is put to the town council for a vote, except an emergency measure as defined in subsection (a), if a single member objects to the taking of a vote, the vote shall be postponed until the next regular or special meeting of the town council. If, when the matter is next taken up for a vote, 4 or more members object to the taking of the vote, the matter shall be further postponed for at least 4 additional days. This procedure shall not be used more than once for any measure, notwithstanding any amendment made to the original measure.

SECTION 4. Subsection (e) of section 4-1 of article 4 of said charter is hereby amended by inserting after the word "duties" the following words: "and may receive compensation as provided by ordinance".

SECTION 5. Section 8-6 of article 8 of said charter is hereby amended by striking out subsection (a) and inserting in place thereof the following subsection:-

(a) Meetings - All multiple-member bodies of the town shall meet regularly at such times and places as they may, by their own rules, prescribe, unless some other provision is made by ordinance. Special meetings of any multiple-member body shall be held at the call of the chair upon 48 hours' notice to all members. Special meetings may also be held upon the call of one-

third of the members of the body, upon 48 hours' notice delivered in hand or to the place of residence of each member. Notice of a special meeting shall contain a listing of the items to be acted upon. A copy of the notice to members shall, forthwith, be posted upon the town bulletin board. In the case of emergency, notice of a special meeting shall be given as far in advance of the meeting as possible under the circumstances.

SECTION 6. The town attorney shall cause the following question to be placed on the official ballot to be used in the city known as the town of Randolph at the next town election that is more than 35 days after the effective date of this section, or on such other official town ballot, before or after the effective date of this section, as may be authorized by the town council:

“Question 1: Shall the town amend the town charter to provide that elected town council members and school committee members may be compensated in an amount to be provided by ordinance, to clarify the rules for voting on town council measures when one councilor objects to the measure, and to clarify the notice requirements for special meetings of the town council and other multiple-member town boards?

Yes _____ No _____”.

The town attorney for the city known as the town of Randolph shall prepare a summary of the ballot question that shall appear on the ballot along with the question provided in this section.

SECTION 7. (a) If the voters in the city known as the town of Randolph approve question 1 in section 6, then sections 1 through 5, inclusive, shall take effect on January 1, 2026 or 30 days after certification of the election results, whichever is later.

55 (b) If the voters in the city known as the town of Randolph do not approve question 1 in
56 section 6, then sections 1 through 5, inclusive, shall not take effect.

57 SECTION 8. Sections 6 through 8, inclusive, shall take effect upon the passage of this
58 act.